

FHS Theory of Politics: Civil Disobedience

Reading List

Reading:

Martin Luther King, 'Letter From a Birmingham Jail', http://okra.stanford.edu/transcription/document_images/undecided/630416019.pdf, reprinted in *The Atlantic Monthly* 297(2), 2006, 55-56.

John Rawls, *A Theory of Justice: Revised Edition*, chapter 6.

Kimberley Brownlee, 'Features of a Paradigm Case of Civil Disobedience,' *Res Publica*, 2004.

Frantz Fanon, *The Wretched of the Earth*, chapter 1.

M.K. Gandhi, *Hind Swaraj* (1909), chapters 16-17 [electronic version available via SOLO Bodleian; other edited editions also available]

Francis Dupuis-Déri, 'The Black Blocs Ten Years After Seattle: Anarchism, Direct Action, and Deliberative Practices', *Journal for the Study of Radicalism*, 2010.

Further reading:

Guy Aitchison, 'Reform, Rupture or Re-Imagination: Understanding the Purpose of an Occupation', *Social Movement Studies*, 2011.

Erica Chenoweth and Martha J. Stephens, *Why Civil Resistance Works: The Strategic Logic of Nonviolent Conflict*.

Ronald Dworkin, 'Civil Disobedience', in Ronald Dworkin, *Taking Rights Seriously*.

Archon Fung, 'Deliberation Before the Revolution: Towards an Ethics of Deliberative Democracy in an Unjust World', *Political Theory*, 2004.

Paolo Gerbaudo, *Tweets and the Streets: Social Media and Contemporary Activism*.

-----, *The Mask and the Flag: Populism, Citizenism, and Global Protest*.

Vinit Haksar, 'Rawls and Gandhi on civil disobedience', *Inquiry*, 1976.

Roger Hallam, *Common Sense for the 21st Century*, https://www.rogerhallam.com/wp-content/uploads/2019/08/Common-Sense-for-the-21st-Century_by-Roger-Hallam-Download-version.pdf

Juliet Hooker, 'Black Lives Matter and the Paradoxes of U.S. Politics: From Democratic Sacrifice to Democratic Repair', *Political Theory*, 2016.

Christopher J. Lebron, *The Making of Black Lives Matter*, chapter 4.

Marianne Maeckelbergh, *The Will of the Many: How the Alterglobalisation Movement is Changing The Face of Democracy*.

-----, 'Horizontal Democracy Now: From Alterglobalization to Occupation', *Interface*, 2012.

Andrew Sabl, 'Looking Forward to Justice: Rawlsian Civil Disobedience and its Question: NonRawlsian Lessons', *The Journal of Political Philosophy*, 2001.

Lesley J. Wood, 'Breaking the Wave: Repression, Identity, and Seattle Tactics', *Mobilization*, 2007.

Past Essay Questions:

Can there be an obligation to obey an unjust law? [2024]

“‘Civility’ as a requirement for justified disobedience does not apply to oppressed members of society.’ Discuss [2023]

To what extent, if at all, does one’s personal evaluation of a law affect one’s obligation to obey it? [2022]

NA [2021,2020]

Actual Notes

Brief Survey of Theories of Political Obligation

Consent Theory

- Generally bad theory because it is up for debate what counts as consent
 - Some adherents say that voting or that formal procedures should be established to be counted as consent, otherwise they can leave → but leaving may not be possible

Society as a mutually cooperative venture

- The classic formulation of the principle is set out in H. L. A. Hart’s “Are There Any Natural Rights?”
 - As Hart there says, “when a number of persons conduct any joint enterprise according to rules and thus restrict their liberty, those who have submitted to these restrictions when required have a right to a similar submission from those who have benefited by their submission” (1955, p. 185).
- John Rawls subsequently adopted this principle in an influential essay of his own, referring to the duty derived from the principle as the “duty of fair play” (1964). What the principle of fair play holds, then, is that everyone who participates in a reasonably just, mutually beneficial cooperative practice – Hart’s “joint enterprise according to rules” – has an obligation to bear a fair share of the burdens of the practice.
 - This obligation is owed to the others who cooperate in the enterprise, for cooperation is what makes it possible for any individual to enjoy the benefits of the practice. Anyone who acts as a free rider is acting wrongly, then, even if his or her shirking does not directly threaten the existence or success of the endeavor. Those who participate in the practice thus have rights against as well as obligations to one another: a right to require others to bear their share of the burdens and an obligation to bear one’s share in turn.

- The principle of fair play applies to a political society only if its members can reasonably regard it as a cooperative enterprise that works to their mutual benefit. If it can, the members have an obligation of fair play to do their part in maintaining the enterprise. Because the rule of law is necessary to the maintenance of such a polity – and perhaps even constitutive of it – the principal form of cooperation is abiding by the law. In the absence of overriding circumstances, then, the members of the polity *qua* cooperative practice must honor their obligation to one another to obey the laws. In this way the principle of fair play provides the grounding for a general obligation to obey the law, at least on the part of those whose polity they can reasonably regard as a cooperative enterprise.

Membership and associative theories

- Associative obligations are ones that agents are alleged to have merely in virtue of their occupying a role in some socially salient relationship, such as being a parent, a friend, or a doctor.
 - These roles are at least partly constituted by the various obligations their occupants owe to the other(s) in the relationship; to be X's parent or Y's friend just is to have certain duties to X or Y (as well as certain claims against them).
 - Exactly what those obligations are varies somewhat depending on the relationship in question and the society in which the participants in that relationship are embedded. These variations reflect different conceptions of the relationship's value or purpose, or of the particular obligations that follow from a specific conception.
 - Whatever their number and content, associative obligations are owed only to particular others, namely those with whom an agent has a certain kind of relationship, rather than being owed universally to all moral agents or sentient beings in virtue of their status as such.
- Since associative obligations attach to an agent simply in virtue of her occupying a role in a particular relationship, it makes no difference whether she comes to occupy that role voluntarily, as in the case of professional relationships and most friendships, or non-voluntarily, as in the case of sibling relationships or, in many cases, citizenship.
- As these examples suggest, occupying roles in various types of relationships often figures centrally in people's identity. In part, this is a matter of people's self-conception; many of us strongly identify with our role as parents, children, siblings, friends, teachers, members of specific religious communities, and so on. Some proponents of associative obligations advance a stronger claim, however. Human beings are not essentially unencumbered individuals who can move in and out of various roles while remaining the same person; rather, we are all embedded in a web of normative relationships, some of which we cannot exit without being "reborn" as radically different people.

- Nevertheless, defenders of an associative account of political obligation owe their interlocutors an account of what makes political association valuable. The emphasis these theorists have placed on membership or association as the ground of political obligation, whilst giving relatively little attention to what makes it valuable, has invited the following objection: if membership is sufficient to generate an obligation to obey, then the members of unjust and exploitative groups will have an obligation to obey the rules. In the case of the polity, this leads to the unpalatable and counter-intuitive conclusion that the routinely exploited and oppressed “members” of an unjust polity are under an obligation to obey its laws
 - The obvious rejoinder is to deny that unjust associations have the sort of value that can ground associative obligations, or at least that this is so for those “members” who are routinely exploited and oppressed. Thus, John Horton develops a two-pronged account of associative political obligation according to which a polity must provide its citizens “the generic good of order and security” and its members must identify with it and acknowledge its political authority (Horton 2010). Similarly, Scheffler maintains that “the value of one’s membership is not independent of the nature of the society or the justice of its institutions,” (2018, p. 14) while Ronald Dworkin holds that associative political obligations arise only among members of a community of principle, one committed to the treatment of all its members with equal concern and respect (1986, pp. 213–215). Whereas these rejoinders all make associative political obligations conditional on the polity adequately satisfying certain substantive moral standards, Massimo Renzo sketches a response that focuses instead on what makes a person a member of a political society. His answer is a “quasi-voluntarist reformulation of the associative model” which holds that we voluntarily occupy our roles even in families and polities as long as “we could have stepped out of them if we had wanted” (2012, p. 109, p. 120). Oppressed “members” of a polity have no associative obligations, at least if stepping out of their role as “members” is not an option available to them at a reasonable cost.

Natural Duty

- John Rawls first broached such an argument for political obligation when he asserted in *A Theory of Justice* that everyone is subject to a natural duty of justice that “requires us to support and to comply with just institutions that exist and apply to us”
- What natural duties are
 - Contemporary natural duty theorists differ over the natural duty that provides the basis for political obligation. Christiano grounds his account in a fundamental principle of justice requiring the equal advancement of people’s interests, Wellman in a Samaritan duty of easy rescue, and Stilz in a Kantian

duty of respect for others' freedom-as-independence, understood as a secure sphere of self-determination defined by a person's rights.

- These theorists agree, however, that moral agents can discharge their natural duty to others only through submission to the authority of a common legal order.
 - This is so for several reasons: the demands of justice are sometimes underdetermined; its achievement requires the resolution of coordination problems; and most importantly, people reasonably disagree over the demands of justice.
 - Christiano traces this disagreement to what he calls the facts of judgment: diversity in people's natural talents and cultural surroundings, cognitive biases in their interpretation of people's interests and the value assigned to their own interests relative to the value assigned to the interests of others, and fallibility in both moral and non-moral judgment. In light of these facts, even those who make a good faith effort to discern what justice requires of them in their interaction with others will fail to reach a consensus.
 - Agents who act on their own, private, judgment of justice will be perceived by others to be acting unjustly. If some are able to unilaterally impose their conception of justice on others, the latter will not enjoy freedom-as-independence (Stilz 2009), or will suffer the violation of their fundamental interests in being at home in the world, in correcting for others' cognitive biases, and in being treated by one's fellows as a person with equal moral standing (Christiano 2008).
 - Only submission to a common legal order can provide a solution to this problem of domination and conflict, argue natural duty proponents of political obligation. "There is no way other than general compliance with a single authoritative set of rules to secure peace and protect basic moral rights" (Wellman 2005, p. 45); law "settle[s] for practical purposes what justice consists in by promulgating public rules for the guidance of individual behavior" (Christiano, p. 53); or in Stilz's Kantian terms, law replaces the unilateral imposition of obligations on others with the omnilateral imposition of obligations on all.
- Not just any legal order will do, though. Rather, many natural duty theorists of political obligation argue either that the law must be crafted according to democratic procedures or that it must not violate certain individual rights, or both, if those it addresses are to have a duty to obey it.

The Relation between Disobedience and Obligation: Justification for Disobedience

Rawls' Theory of Civil Disobedience

First Section: Rawls' Notion of Political Obligation: how we become bound to one another

- Natural Duty: the most important natural duty is that to support and further just institutions
 - Two parts
 - First, comply with and to do our share in just institutions when they exist and apply to us
 - Second, assist in the establishment of just arrangements when they do not exist, at least when this can be done with little cost to ourselves
 - It follows that if the basic structure of society is just, everyone has a natural duty to do what is required of him
 - This natural duty is selected because it is better than the utilitarian alternative and is coherent with the two principles of justice
 - The rational voter should vote for the party that advances the principles of justice, which is contrary to maximising the good
 - Only in noninstitutional situations is the utilitarian view compatible with justice
 - Other natural duties such as to show a person respect as a moral being with a sense of justice and a conception of the good → to respect a person is to understand his aims and interests from his standpoint and to present him with considerations that enable him to accept the constraints on his conduct
- Fair Play: that we are bound to one another due to mutual advantage
 - Rawls expresses the principle of mutual advantage and obligation via his principle of fairness: that a person is under an obligation to do his part as specified by the rules of an institution whenever he has voluntarily accepted the benefits of the scheme or has taken advantage of the opportunities it offers to advance his interest, provided that this institution is just or fair...satisfies the two principles of justice
 - The intuitive idea here is that when a number of persons engage in mutually advantageous cooperative venture, those who have submitted to these restrictions have a right to a similar acquiescence on the part of those who have benefited from their submission
 - There is a hidden line when Rawls says of the principle of natural duty: "these remarks can be strengthened by recalling our...discussion of public goods" and that an "effective sense of justice...tends to stabilise just social arrangements". It nullifies the instabilities due to tendencies arising from self-interest and apprehensions about the faithfulness of others → solves the assurance problem by implementing duties and basing our political ties upon a principle of obligation
 - Line of consent where Rawls says that "Citizens would not be bound to even a just constitution unless they have accepted and intend to continue to accept its benefits...must be in some...sense voluntary"
 - Hypothetical consent

- Principle of fidelity is a special case of the principle of fairness applied to the practice of social promising → promise to follow the rules
 - Induces a social practice of law-abidingness that creates benefits for all → through stabilising social cooperation (analogous to the role of the sovereign in Hobbes' Leviathan)
- The principle of fairness shows that
 - The contract doctrine holds that no moral requirements follow from the existence of institutions alone; to account for the fiduciary obligations, we must take the principle of fairness as a premise
 - Justice as fairness holds that natural duties and obligations arise only in virtue of ethical principles
 - Institutional requirements and those deriving from social practices generally can be ascertained from the existing rules and how they are to be interpreted

Rawls' Justification of Civil Disobedience

- We have duties to abide by unjust laws, provided that they do not exceed certain limits of injustice
 - The goal is to figure out what these limits are since our duty or obligation to accept existing arrangements may sometimes be overridden which depend upon the principles of right → must consider how the unjustness of an institution affects our political duty and obligation
 - Clearly a small deviation from justice does not warrant non-compliance
 - Sometimes just institutions (such as some variants of democracies) make mistakes
 - "Our natural duty to uphold just institutions binds us to comply with unjust laws and policies or at least not to oppose them by illegal means as long as they do not exceed certain limits of injustice" → in a state of near justice, we still have natural duties to uphold their laws
 - "We have a natural duty of civility not to invoke the faults of social arrangements as a too ready excuse for not complying with them"
 - The duty to comply is problematic primarily for permanent minorities that have suffered from injustice for many years
- Majority rule and justice: a law is sufficiently just...we conclude that most persons taking part in this procedure and carrying out its stipulations would favour that law or policy
 - "We want to formulate an ideal constitution of public deliberation in matters of justice...best to approximate...the correct judgement" → favours deliberative democracy through public oriented reasons (the Veil of Ignorance mechanises this) and through expansive reasoning powers

- Circumstances under which civil disobedience is justified
 - Condition #1: Serious infringements of the first principle of justice (equal liberty) and to blatant violations of the second part of principle (fair equality of opportunity)
 - Infractions of the difference principle is more difficult to ascertain because it applies primarily to economic and social institutions and depends on beliefs and speculations
 - Condition #2: The last-resort principle
 - “We may suppose that the normal appeals to the political majority have already been made in good faith and that they have failed. The legal means of redress have proved no avail”
 - Motivated by fidelity to law
 - Condition #3: Restraining condition – there is a limit on the extent to which civil disobedience can be engaged without leading to a breakdown in the respect for law
 - Motivation: “It is conceivable...that there should be many groups with an equally sound case for being civilly disobedient; but that, if they were all to act in this way, serious disorder would follow which might well undermine the efficacy of the just constitution”
 - Calls for a cooperative political alliance for the minorities to regulate the overall level of dissent
 - Sometimes condition 1+2 is sufficient but 3 is occasionally needed
 - Rawls notes that our natural duty of justice is the primary basis of our political ties to a constitutional regime, but it may be defeasible for the less favoured members of society who are “likely to have a clear political obligation as opposed to a political duty”

The Role of Civil Disobedience in a constitutional system

- Civil disobedience is to address the sense of justice of the majority and to serve fair notice that in one’s sincere and considered opinion the conditions of free cooperation are being violated
 - Force of this appeal depends upon the democratic conception of society as a system of cooperation among equal persons
 - By resisting injustice within the limits of fidelity to law, it serves to inhibit departures from justice and to correct them when they occur
- Rawls thinks that in the Original Position, parties would agree that the three conditions are when civil disobedience is justified
- “In a democratic society, it is recognised that each citizen is responsible for his interpretation of the principles of justice and for his conduct in light of them”

- “There can be no legal or socially approved rendering of these principles that we are always morally bound to accept, not even when it is given by a supreme court or legislature”

Personal Responsibility for Injustice and obligation to disobey

Summary: Questions whether one is complicit in injustice if they consent to the unjust government, and what obligations arise out of this complicity

- Objection #1: Personal responsibility for injustice
 - Personal responsibility for injustice, such as there is anything of this sort, is sufficiently met by playing one's full part within the existing political and legal system with its constitutional provisions for minority rights and without breaking any laws not themselves the object of protest as unjust, in order to obtain a government which will undo by exercise of its constitutional powers whatever injustices its predecessor may have perpetrated or perpetuated
- Objection #2: The only acts of civil disobedience which could be justified are those which interrupt the enabling or authorising relationship between the protester and those inflicting or suffering injustice.
 - No act of indirect civil disobedience does this. Therefore, no such act can be justified.
- Thoreau's principle: sees himself as responsible for certain injustices which (a) he knows he has not intentionally, knowingly, or in his own person directly inflicted and (b) are not inflicted by someone acting as the executor of his intention
 - Thoreau does not implicitly single out himself as especially responsible for the injustices he protests: he is responsible only if others are responsible too
- Possible argument for personal responsibility for injustice and culmination in indirect civil disobedience
 - Certain particular persons continue to commit acts, knowingly and deliberately which violate human rights of others
 - These persons do not act on their own but as agents of the government with full authorisation of their acts
 - The government is responsible for those injustices (principle of governmental responsibility)
 - If a political community continues to accept a government knowing the acts it commits to implement its policies, then the community itself becomes responsible for those acts whether or not it knew and approved of them before the fact (principle of collective responsibility)
 - If an individual continues to accept membership in a political community in the knowledge of what community authorises, then the individual himself becomes responsible for those acts whether or not he knew and approved of them before the fact (Principle of distributive responsibility)

- Bedeau argues that those who accept the principle of distributive responsibility has accepted a much more demanding burden than any conventional principle of democratic political responsibility
 - It also fails to express Thoreau's principle because (1) it fails to bring out the nature of linkage between the individual and the government in virtue of which vicarious responsibility is established and (2) it fails to contain the injunction to act out of concern for one's responsibilities
 - Need to revise the principle of distributive responsibility to make contact with justified civil disobedience
- Membership condition can be established in multiple ways (acceptance of conferred benefits, by voting etc)
 - But in examining tax paying, what is to be emphasised is the authorising and enabling function which an individual's tax payments can be taken to play → measure of allegiance
- Proposition: A person becomes responsible for the acts of another iff he (a) has authorised that other to act, or (b) has enabled that other to act, (c) knows how that other has used his position and authority to act, and (d) he continues to do (a) and (b) i.e. he does not revoke the authority granted or to prevent its abuse
- Continuation of the principle: Anyone at all responsible for unjust acts, whether of his own or another's, must act so as to acquit himself of the fault incurred by that responsibility
 - Bound to contemplate illegal activity insofar as purely legal activities prove insufficient to affect the injustices for which he is responsible for
- So civil disobedience can be motivated from the actions of others (i.e. the state or the government)

Walzer's Obligation for Civil Disobedience

Summary: Walzer argues that our obligation to disobey civilly derives from our obligations toward our constituent membership groups and when these obligations come into conflict with our obligation to obey the law. Even if we have wilful membership to the State, our obligations to the state are defeasible under certain circumstances

- An obligation to disobey does not derive from the premise that 'this law does not conform to my moral convictions' but rather a claim about collective moral convictions i.e. 'this law does not conform to our moral convictions'
 - The principal task is to investigate whether this premise does instantiate a moral obligation to disobey the law
- Membership and obligation
 - Society is constituted by a multiplicity of groups of which a person has membership status towards some of them

- Walzer argues that the condition for membership status is being a wilful member
- For Walzer, there is a very contractarian undertone in the development of such membership groups
- Wilful membership necessarily means that there is some expressed commitment towards such groups of which I am a part of, which in turn, generates certain obligations that I would need to carry out
- Such wilful membership and obligations help us make sense of the concept of 'selling out' → I betray my group by failing to discharge or outright violating some of the commitments that I have towards them
- The duty to disobey arises when obligations incurred in some small group come into conflict with obligations incurred in a larger, more inclusive group, generally the state
 - Revolutionary groups are those which say that its members have a obligation to disobey every single law i.e. the whole system
 - Groups that express civil disobedience only make partial claims to primacy i.e. that their members recognise the primacy of their obligations only in one sphere of political or social life
- Reconciling the primacy of one group's obligations over the state's with the fact that one can remain a member of the state
 - Locke's two possibilities of being a member: (1) a citizen through the full recognition of the primacy of the state and (2) a rebel through seeking to overthrow a particular government and its laws
 - Walzer thinks that a member of a group competing for its partial primacy falls into none of these categories since his loyalties are divided → he is not simply a citizen but he is also clearly not a rebel; neither is he an alien
 - What people with divided loyalties have in common is that none of them admits without qualification the political sovereignty or moral supremacy of the larger society of which they are members; none of them absolutely denies that sovereignty or supremacy
 - They are partial members but also partially aliens (without obligation to the state) and partially rebels
 - There is therefore an uneven incidence of obligation among members of society towards the state, diluted by their competing obligations towards groups in which they are members of
- Walzer suggests that people have a prima facie obligation to honour the engagements they have explicitly made, to defend the groups and uphold the ideals to which they have committed themselves, even against the state, so long as their disobedience of laws or legally authorised commands does not threaten the very existence of the larger society or endangers the lives of its citizens

- In turn, it must be obedience to the state, when one has a duty to disobey, that must be justified → explanations to one's member groups such as public health, or personal security
- The state can be conceived as an external limit on group action
- Objections against the fact that disobedience can ever be obligatory
 - Objection #1: A state itself is a group which people are wilful members of
 - But Walzer thinks that people have no real alternative to being members of other states
 - Objection #2: A state derives obligation from its members not via expressed membership or commitment but through its value
 - It is clear that in circumstances where group interests conflict that create conditions for civil disobedience, it is easy to deny the value of one's membership towards the state when there is oppression etc
 - However, what about group interests such as mandated Bible Study in Tennessee?
 - There must be some independent test for which group interests are to be counted as valid impetus for group disobedience
 - Test of reciprocity (?)

Lefkowitz's Moral Right to Civil Disobedience

Summary: one has a morally justified claim to political authority, and enjoys a moral right to engage in acts of suitably constrained civil disobedience. Basically, a state's political legitimacy depends on the state respecting the rights of citizens as autonomous agents, which includes the right to civil disobedience.

Cases where civil disobedience need not be justified via a right to do so

- A state without a justified claim to political authority
 - No moral difficulty → only to do with whether the act has immoral consequences such as harm
- Moral considerations defeat or outweigh the duty to obey the law
 - The duty to obey the law may be a pro tanto moral reason that in some cases is defeated by other moral reasons
 - The duty to obey the law may not exclude all of the reasons that apply to an agent in a given case and a non excluded reason for violating the law may in turn defeat the reason for action provided by the law's requiring some conduct

Liberal democratic state's claim to political authority

- Contractualist account of treating others as autonomous agents

- Motivated agents are conceived of having two fundamental commitments: (1) to lead a way of life that they find valuable and meaningful and (2) a commitment to limiting the pursuit of that way of life where necessary to accommodate other agents who have these same two commitments
- Morality consists in those principles agents would choose to govern their own conduct
- Scanlon's method of reasonable rejection can be used to establish the specific duties that all moral agents owe to all other moral agents
 - Duty and obligations are shorthands for referring to moral principles for the general regulation of behaviour that no one could reasonably reject
 - Includes basic human rights, freedom of speech, adequate nutrition etc
- To respect and achieve these rights and duties, collective action is required → laws are there to facilitate such collective action
 - Reasonable disagreement will likely arise with respect to what the law ought to be
 - The recognition of each person's equal status as an autonomous agent requires a decision procedure that suitably motivated agents could not reasonably reject
- Respect for persons as autonomous agents also requires that the state acknowledge a moral right to public disobedience on the part of its citizens
 - In part, the content of a right to political participation that an agent must enjoy justifies the state's political authority
 - Democracy does not suffice to justify a claim to political legitimacy
- Political legitimacy = democratic + a principled commitment to respect for individual's basic rights → liberal and democratic are jointly sufficient as a justification for a state's claim to political authority over its citizens and a correlative duty on their part to obey the law
- Defence a of liberal-democratic state has an instrumentalist and a non-instrumentalist component
 - Instrumentalist reason: the agent has a natural duty to others to see to it that they do not suffer violations of their basic rights and fulfilling this duty requires collective action
 - Non-instrumentalist reason: the fact that respect for others autonomy requires acknowledging the authority of a decision procedure that grants an equal say to all

Defence of the moral right to public disobedience

- Raz's counter-position against civil disobedience in a liberal state

- Begins with a definition of a liberal state as one in which the moral right of every person to political participation is adequately recognised and protected in law. Thus, there can be no right to civil disobedience by definition because it minimally involves disobeying the law for the purpose of political participation. But the right to political participation is already adequately recognised and protected by law in a liberal state. Therefore, the subject of such a state cannot appeal to her moral right to political participation in order to justify her disobedience to law. Thus, while in certain circumstances a citizen of a state may act rightly when she commits an act of civil disobedience, say, if doing so will improve the justice of the legal system, it is never the case that she has a right to do so
- Raz asserts that “every claim that one’s right to political participation entitles one to take a certain action in support of one’s political aims, even though it is against the law, is ipso facto a criticism of the law for outlawing this action”
- Objection: it does not necessarily follow from the assertion that one has a moral right to take a certain action in support of one’s political aims – disobeying certain laws – that one is criticising the law for outlawing this action. Or at least, it does not necessarily follow that one is criticising the state for interfering with one’s committing such actions where interference takes various forms for which the state would be criticised were it to interfere in these ways with citizens’ attempts to exercise their moral rights to political participation by legal means
 - The state must provide one for a reason not to do the act outlawed
- An adequate recognition of the moral right to political participation encompasses a moral right to public disobedience
 - Because decision procedures must put an arbitrary end to debates regarding a law in order to reach a collective decision, a citizen’s right to political participation entails that the debate cannot end just because a decision is reached and that allowing such debate to continue is paramount in recognising each agent’s claim to a voice in settling disputes
 - The inclusion of public disobedience among the morally permissible methods for continuing debate rests on instrumental considerations regarding the best set of norms for regulating collective decision making mechanisms, including norms designed to reflect the debt of an agent’s conviction on a particular issue and to enhance rapid dissemination of various views
 - A moral right to public disobedience is not a criticism of the state for outlawing that action in question
- If there is a moral right to public disobedience, the state should penalise and not punish civil disobedience
 - Penalisation is to merely impose a cost while punishment has an expressive element of resentment and indignation
 - Is there plausibly such a distinction

- Penalisation is justified on instrumental and symbolic grounds
 - Stability to the state and symbolises the cost they impose on others in the polity by engaging in such acts

The right to do wrong

- Even if someone engages in civil disobedience to change the law that would worsen justice, they still have their right to do so
 - This right remains grounded in an agent's exercise of autonomous choice or authorship over the form and direction her life takes
 - But this right to self-authorship in political participation does not always defeat other rights when it comes into conflict with them

Dr King's Letters from Birmingham Jail

- King fundamentally claims that civil disobedience is necessary when the structures and institutions in a society does not serve the people or fails to serve a group of people
 - Even if civil disobedience creates disturbances to society, we must consider the condition of the people demonstrating or the people they are demonstrating for
- "In any nonviolent campaign there are four basic steps: collection of the facts to determine whether injustices exist; negotiation; self purification; and direct action"
- Argument from efficacy for direct action
 - "You may well ask: "Why direct action? Why sit ins, marches and so forth? Isn't negotiation a better path?" You are quite right in calling for negotiation. Indeed, this is the very purpose of direct action. Nonviolent direct action seeks to create such a crisis and foster such a tension that a community which has constantly refused to negotiate is forced to confront the issue. It seeks so to dramatize the issue that it can no longer be ignored"
- But the instrumental argument is not sufficient; requires a condition for institutional failings → specifically, the failings of the Church but acts as a metaphor or representative of the status quo
 - "First, I must confess that over the past few years I have been gravely disappointed with the white moderate. I have almost reached the regrettable conclusion that the Negro's great stumbling block in his stride toward freedom is not the White Citizen's Council or the Ku Klux Klanner, but the white moderate, who is more devoted to "order" than to justice; who prefers a negative peace which is the absence of tension to a positive peace which is the presence of justice; who constantly says: "I agree with you in the goal you seek, but I cannot agree with your methods of direct action"; who paternalistically believes he can set the timetable for another man's freedom; who lives by a mythical concept of time and who constantly advises the Negro to wait for a "more convenient season." Shallow understanding from

people of good will is more frustrating than absolute misunderstanding from people of ill will. Lukewarm acceptance is much more bewildering than outright rejection."

■ Criticises organised religion for turning a blind eye to the plight of the African Americans

- King argues that there is an obligation to disobey unjust laws
 - "A just law is a man made code that squares with the moral law or the law of God. An unjust law is a code that is out of harmony with the moral law. To put it in the terms of St. Thomas Aquinas: An unjust law is a human law that is not rooted in eternal law and natural law. Any law that uplifts human personality is just. Any law that degrades human personality is unjust. All segregation statutes are unjust because segregation distorts the soul and damages the personality. It gives the segregator a false sense of superiority and the segregated a false sense of inferiority."
- Hidden Line: there is a loss of political obligation when a set of people are thoroughly deprived of their fundamental rights and do not stand to gain from the arrangement
 - But when you have seen vicious mobs lynch your mothers and fathers at will and drown your sisters and brothers at whim; when you have seen hate filled policemen curse, kick and even kill your black brothers and sisters; when you see the vast majority of your twenty million Negro brothers smothering in an airtight cage of poverty in the midst of an affluent society; when you suddenly find your tongue twisted and your speech stammering as you seek to explain to your six year old daughter why she can't go to the public amusement park that has just been advertised on television, and see tears welling up in her eyes when she is told that Funtown is closed to colored children, and see ominous clouds of inferiority beginning to form in her little mental sky, and see her beginning to distort her personality by developing an unconscious bitterness toward white people; when you have to concoct an answer for a five year old son who is asking: "Daddy, why do white people treat colored people so mean?"

Criticisms of King's Argument

- King's argument is less potent for laws that are not obviously unjust → segregation laws may have been clearly unjust, but that is not so for perhaps laws like affirmative action
 - King points out that some laws are just in theory but unjust in application → this further makes it less clear what laws are just or unjust
- King's argument is also vulnerable to objections against the assertion that there exists an eternal moral law → what if there is no objective moral code to follow?

Dworkin's interpretivism and subjective evaluation

- Civil Disobedience is clearly not the same as lawlessness
 - While society cannot endure if it tolerates all disobedience, it does not follow that it will collapse if it tolerates some
- Difference between civil disobedience and lawlessness
 - Protestors act out of better motives than those who break the law out of greed; civil disobedience has an intentional character
- Objection from fairness: it would be unfair to allow disobedience because it allows dissenters to 'secure the benefits of everyone else's deference to law, without shouldering the burdens, such as the burdens of draft'
 - Flaw in the argument: hidden assumption that the dissenters know that they are breaking a valid law and that the privilege they assert is the privilege to do that
 - Critics often argue that dissenters should go unpunished if the law is unconstitutional or if the law is invalid. If the law is valid, then the dissenters should be punished → but this leaves out the third valuation of the law, that its validity may be doubtful
 - This makes the argument from fairness irrelevant because it is designed for the alternative that the law is obviously valid or invalid
- Context of draft resistance for Vietnam in the US
 - There were a few constitutional arguments from the dissenters, namely (i) issue of whether the action in Vietnam was a 'war' and whether the Tonkin Bay Resolution was a 'declaration' and (ii) whether their military action in Vietnam was frivolous or perverse which implies that the burden placed on men of draft age was unconstitutional
 - Clearly, these arguments were not decisive → cannot conclude if the draft was unconstitutional
- Three possibilities if the law is doubtful
 - Act on the assumption that it is not allowed to disobey and obey authority even if he thinks that they are wrong and use the political process to enact change
 - Lose the advantages of having different parties to pursue their own understanding, so that we test relevant hypotheses regarding the desirability of a law and the consequences of the law (whether it would have broad and deep consequences)
 - Doubtful that people should continue to act as if a law that infringes on liberty is valid
 - Follow his own judgement but once an institutional decision has been made, he must abide by that decision even if he thinks it is wrong
 - Also reject this because it is possible that the Supreme Court may overrule itself

- If we did not have the pressure of dissent, we would not have a dramatic statement of the degree to which a court decision against the dissenter is felt to be wrong, a demonstration that is surely pertinent to the question of whether it is right
 - Follow his own judgement even after a contrary decision by the highest competent court, with the qualification that he must take into account the court's ruling in making his judgement of what the law requires
 - Cases whereby the Supreme Court have revised their decision so it is valid for a person to think that the law may still be on his side even if the Supreme Court decided otherwise
 - Dworkin thinks that the third statement is the fairest statement of a man's social duty in one's community
 - A citizen's allegiance to the law, not to any particular person's view of what the law is, and he does not behave unfairly so long as he proceeds on his own considered and reasonable view of what the law requires
 - It is not that the citizen can disregard what the law has said or what the courts have said, but that he must make his own judgements after genuinely and sincerely considering their views and reasons → continue to disregard if he believes that the Court has made a mistake
- Several conclusions
 - When the law is uncertain, in the sense that a plausible case can be made on both sides, then a citizen who follows his own judgement is not behaving unfairly. He is permitted and encouraged to follow his own judgement and for that reason, the government has a special responsibility to try and protect him and soften his predicament whenever it can do so without great damage to other policies
 - The government need not grant him immunity – it cannot adopt the rule to not prosecute anyone who acts out of conscience or reasonably disagrees with the court
 - If never prosecuted, then there will be no legal debate surrounding the issues of contention
- Objection: Dworkin assumes a strong metaphysics of the actual law as something existent
 - Does not mean there are no arguments that are admissible regarding what the law should be → lawyers air opinions about the law in academia even though they know their claims are not demonstrable

What Civil Disobedience Is: Why distinguishes it from mere law-breaking

Rawls' Definition of Civil Disobedience

- Rawls specifies his definition of civil disobedience for only a special case of a 'nearly just society' i.e. one that is 'well-ordered for the most part but in which some serious violations of justice nevertheless do occur'. This state of near justice requires a democratic regime
 - Concerns the role and appropriateness of civil disobedience to legitimately established democratic authority
- A constitutional theory of civil disobedience has three parts: (i) defines the kind of dissent and separates it from other forms of opposition to democratic authority; (ii) sets out the grounds of civil disobedience and the conditions under which such actions is justified in a just democratic regime; (iii) a theory should explain the role of civil disobedience within a constitutional system and account for the appropriateness of this mode of protest within a free society
- Definition: civil disobedience is a public, nonviolent, conscientious yet political act contrary to law usually done with the aim of bringing about a change in the law or policies of the government
 - One need not disobey the precise law they disagree with
 - Political because it is addressed to the majority that holds political power, but crucially also because it is an act guided and justified by political principles i.e. principles of justice that regulate the constitution and social institutions generally
 - Public: Engaged openly with fair notice → giving voice to the conscientious and deeply held convictions
 - Non-violent: expresses disobedience to law within the limits of fidelity to law although it is at the edge thereof → even though a law is broken, fidelity is expressed through nonviolence and thereby helps to establish to the majority that the act is indeed politically conscientious and sincere, and that it is intended to address the public's sense of justice → gives bond of one's sincerity

Criticisms of Rawls' definition

Brownlee's Paradigmatic Approach

- Paradigmatic approach rather than definition
 - Absurd to deny that paradigm cases are not cases of civil disobedience and therefore it is inclusive and not exclusive by establishing necessary but insufficient conditions
 - A definition implies civil disobedience has clear edges
 - Distinguish civil disobedience vs conscientious objection, terrorism, and revolutionary action
- Conscientiousness: the obedience or loyalty to conscience

- Marked by seriousness and scrutiny
 - Marked therefore by a degree of self-sacrifice, constancy and a willingness to take risk, capacity to defend the reasons for engaging in the pursuit
- Conscientious aspects of civil disobedience: sincerity, seriousness and moral consistency
 - Sincere and serious belief that a law or policy warrants revision and that the values that underpin the belief are sufficiently weighty to require a breach of law in their defence
 - This belief commits one to communicating this judgement in some situations → in relation to civil disobedience, we must say something circumspect, namely, that a person's judgement about governmental decisions gives her reasons to communicate her objections through disobedience of the law
 - What matters for conscientiousness is that a person acknowledges the reasons for action that are generated by her commitments and beliefs → when one judges the revision to a law to be sufficiently weighty to warrant a breach of law, it is morally inconsistent to deny that she has reasons to engage in civil disobedience against that policy or law
 - Conscientiousness demands sincerity in belief that she has good reasons for action, rather than demanding correctness in her judgement
- Communicative
 - Aspects of communication
 - At least a didactic relation between two persons → other-directed activity and requires both a speaker and a hearer
 - Communication is crucially understood here as intentional communication rather than incidental or contingent communication → the actual effects must be intended
 - Communicative aspect of civil disobedience
 - Rawls emphasises the public and political nature of civil disobedience and Raz emphasises the aim of expressing protest against a law or policy → Raz does not go far enough since expression can be a solitary endeavour
 - Parallels between the communicative aspect of civil disobedience vs of lawful punishment of a wrongdoer by a state
 - Processes both reflect things about the parties engaged in term: mark of society's adherence to certain values that it is willing to condemn individuals' actions when those actions violate or contravene these values and a mark of a person's

adherence to certain values that she is willing to condemn the actions of her government when those actions violate those values

- Civil disobedience is associated with an aim, just like the communicative interpretation of lawful punishment, to demonstrate protest and an aim to bring about change
- In civilly disobeying a law, a person conveys her disavowal and condemnation of a law as well as her dissociation from both the law and the government that enacted it → declaration of disconnection by the law
- In punishing the wrongdoer, the state addresses both the wrongdoer and the public, to reassure people of their safety, to confirm the innocence of others as well as to deter the public from committing more crimes; while the protestor addresses the policymakers and perhaps the victims of such a law and would like to bring about change → both forward looking
- The forward looking aim of civil disobedience has two parts: (i) lead policymakers to reform and (ii) internalise the reasons behind the dissenter's condemnation and disavowal of the law → undermines coercive forms of communication since it does not allow for the internalisation of reasons
- Modes of communication: publicity and violence
 - Publicity is a criterion within the standard definition of civil disobedience
 - Rawls argues that disobedience can never be secretive or covert and is only ever committed in public with fair notice to legal authorities
 - Violence
 - Controversial → Rawls excludes violence from being possible
 - Less restrictive attitude towards violence is needed by allowing non-coercive violence since violence is not by definition a coercive measure and neither is it incompatible with conscientious intentions
 - Buddhist Monk who sets himself on fire in front of an American embassy to protest against the US foreign policy is not coercive even if violent
 - Sometimes, the harm to others caused by both non-violent acts and legal acts is sometimes worse than that caused by violence → no general reason why violent action should not be available to a person who engages in civil disobedience
 - Does not change the fact that non-violent dissent is normally to be preferred since there are moral considerations such as avoiding direct harm caused by violence and non-violence does not encourage

violence in other situations where violence would be wrong, something which an otherwise warranted use of violence may do

Examples and features of cases of civil disobedience

UCL occupations over the government's austerity measures: purpose of occupations

- Symbiotic visions of Occupation: collective bargaining with authorities
 - Walk out and direct action: radical disenchantment with the parliament and political parties and a residual hope that these could be influenced towards progressive ends by convincing sufficient MPs
 - Direct action denotes a state of exception to be resorted to when political processes have failed
- Ruptural visions of Occupation
 - ANger and frustration towards management reflected a growing disenchantment with authority amongst student activists more generally and reflected a broader process of radicalisation
 - Creation of deliberative enclaves with some degree of commonality and shared political opinions tended towards polarisation
 - Growing antagonisms
- Interstitial visions of Occupation
 - Occupation is to be realised as a distinctive form of political activity and to act internally in a way consistent with the just and egalitarian lines that they espouse
 - Generate an ideal of a free and open space with a democratic egalitarian ethos

The permissibility of violence in Civil Disobedience

The thesis that violence is circumstantially justifiable

Franz Fanon's *Wretched of the Earth: Colonisation of Algeria and the struggle for Decolonisation*

Summary: Fanon undertakes a Marxist analysis of decolonisation, and asserts that "decolonisation is always a violent phenomenon" because it is the "replacing of a certain species of men by another species of men." In fact, violence is necessary to correct oppression because it is existential for them as they face threats of violence by their masters

- Calls into question the plausibility of Rawls' conception of a 'near-just society'
 - Colonisation is the classical injustice that is recalcitrant and that there is no legal redress available because of the fundamental arrangement of society
 - Insight: it seems that for condition #1 to be fulfilled in Rawls' theory, condition #2 must be in some way nullified. If a society was truly 'near-just' through its constitutional and democratic arrangements, it must already be properly contestatory

- Fanon shows that, through the illustration of decolonisation, injustice of a subgroup is fundamentally antagonistic
 - Marxist analysis: “Decolonisation is the meeting of two forces, opposed to each other by their very nature, which in fact owe their originality to that sort of substantification which results from and is nourished by the situation in the colonies. Their first encounter was marked by violence and their existence together – that is to say the exploitation of the native by the settler – was carried on by dint of a great array of bayonets and cannons”
 - Therefore, violence seems to be necessary to correct any injustice
- The implausibility of legal redress for two reasons
 - There are no systems in place to account for minorities – critics may say that Rawls’ theory is therefore inapplicable and not meant for such societies
 - The deeper reason is the internalised oppression that these minorities face
 - “In order to assimilate and to experience the oppressor’s culture, the native has had to leave certain of his intellectual possessions in pawn”
 - “But the native’s guilt is never a guilt which he accepts; it is rather a kind of curse, a sort of word of Damocles, for, in his innermost spirit, the native admits no accusation”
 - This deeper internalised oppression compromises the Kantian subject that is the assumption of liberal democracy – that the individuals which populate society are reflexive and autonomous, capable of reason → undermines their personhood and capabilities crucial in participating in any system
- Fanon, through colonisation, shows that the goal of these minorities or natives is not to merely change one law, but to create an upheaval of “absolute substitution”
 - Insight: oppression and injustice, especially if egregious enough to justify civil disobedience, is likely to be systemic rather than idiosyncratic
 - And if there is to be such a necessary upheaval, then violence is a feature of such a progress
 - “Colonialism is not a thinking machine, nor a body endowed with reasoning faculties. It is violence in its natural state, and it will only yield when confronted with greater violence”
 - In short, civil disobedience is a vacuous concept because civil disobedience can never be civil
 - It is the intuition of the colonised masses their their liberation must, and can only, be achieved by force
- The triumph of violence
 - Even against the odds of being confronted with the military and economic might of the occupation, their violence is an attempt to “break their chains” and “the extraordinary thing is that they succeed”

- “The violence of the colonial regime and the counter-violence of the native balance each other and respond to each other in an extraordinary reciprocal homogeneity”

Malcom X's the Ballot or the Bullet

1. Justifiability of Civil Disobedience

- **Frustration with Non-violent Strategies:** Malcolm X critiques traditional civil rights approaches that rely on non-violence, arguing they have failed to achieve meaningful change.
- **Civil Disobedience as a Tactical Choice:** While Malcolm X does not reject civil disobedience outright, he emphasizes that it should be a means to an end rather than an absolute principle. Civil disobedience is framed as justified if it effectively addresses injustice and challenges systemic oppression.
- **Role of Political and Economic Action:** He advocates for economic boycotts and community self-reliance as forms of civil disobedience to undermine oppressive systems.

2. Justifiability of Violence

- **Self-defense vs. Aggression:** Malcolm X explicitly separates self-defense from aggression. He asserts that violence is justified when used in self-defense against the violence perpetuated by the state or individuals.
- **“By Any Means Necessary” Philosophy:** He emphasizes that oppressed people have a natural right to protect themselves and their communities by whatever means are required if their basic rights are denied.
- **Violence as a Last Resort:** While advocating for self-defense, Malcolm X portrays violence as a response to the failure of peaceful efforts, not a preferred first course of action.

3. Pragmatism and Conditional Non-violence

- **The Ballot as a Solution:** Malcolm X urges African Americans to exercise political power by voting, framing it as the preferred and peaceful path to change.
- **The Bullet as a Warning:** He warns that if systemic oppression continues and peaceful avenues remain blocked, violence may become an inevitable recourse. This is not a call to arms but a statement of political reality.
- **Critique of Hypocrisy:** Malcolm X highlights the hypocrisy of a government that expects non-violence from oppressed citizens while perpetuating systemic violence.

Dupuis-Deri's analysis of the Black Blocs reaction towards police oppression

- Violence is justified by the nature of the state
 - The reason why they engage in militant thinking is because the oppression they face is one that is quintessentially violent
 - Clears the way for the wisdom that political activity need not be restricted to rationality and can be expressed in different forms

- Attacked by the police and by the state
- Emergence of political emotions
 - Antagonisms along social and economic lines
- Violence is instrumental to expansive and immediate expression
 - Highly efficient media strategy that articulates one's position with uninhibited emotional depth
- Non-coercive violence in terms of property damage
 - Not random vandalism but highly political and usually carefully targeted → it is regulated by an internal calculus and thus naturally restrains their action

Delmas' A Duty to Resist: When Disobedience should be uncivil

Summary: argues that the very duty to obey also imposes duties to disobey under conditions of injustice; defends a duty to resist injustice as a core part of our political obligations

- A competing duty against the duty to obey the law is the duty to disobey illegitimate governments
 - A sense of responsibility to contest injustice permeate political movements like BLM movement
- The duty to obey is pro tanto – ordinarily decisive yet defeasible and does not arise in the face of serious injustice

Principled Disobedience

- Principled Disobedience vs Civil Disobedience
 - Topless Heckling or leaks do not qualify as civil disobedience – the term civil disobedience is not merely a definition but serves an evaluative function
- Proposes to articulate a sympathetic approach to principled disobedience and that these acts might be justified and should be phenomenologically accurate i.e. faithful to practitioners' self-understanding
 - But need not stretch the concept of civil disobedience too far – instead principled disobedience that includes uncivil disobedience
- Against the Rawlsian conception of civil disobedience as resting on an unrealistic and objectionable reading of the African American civil rights struggle because it deters noncompliance and reinforces the status quo
 - Rawls' vision is that civil disobedience contrasts with armed resistance, rebellion and revolution that are violent and uses covert tactics and which express a lack of respect for established laws
 - Rawls' account was influenced less by Gandhi and Thoreau but by King because of the public, nonviolent campaigns that were launched such as the Good Friday March in Birmingham
 - Responded to state and mob violence peacefully and willingly submitted to arrest and jail for their lawbreaking → displaying essential marks of civility

- But Rawls' account does not reflect how the activists saw themselves and distorted political reality; the actor's outward submission to law did not reflect their endorsement of the system's legitimacy or their acceptance of a moral duty to obey the law → Rawls objectionably ascribes these attitudes to the activists
 - Driven by strategic rather than moral considerations since social and legal change were known to occur in a piecemeal fashion
 - King wrote that the Jim Crow laws did not deserve respect and called the caste system "unjust" while also wanting to "get rid of the system"
 - Misunderstands the expression of having "highest respect for law" → highest respect for the moral law rather than the prevailing system of the law itself
- An attentive reading of Rawls' theory means that it should not be applied to the special societies of Gandhi and King's since they were not in nearly just states but has nevertheless been so applied
 - But Rawls' does note the risk that, even in an apparently well-ordered society, "when the strains of commitment seem to us excessive...we become sullen and resentful, and we are ready as the occasion arises to take violent action in protest against our condition" and that if the civil disobedient's appeal to the majority "fails in its purpose, forceful resistance may later be entertained"
- Inclusive Accounts of Civil Disobedience
 - Rawlsian account is too minimalist; critics such as Brownlee problematizes the conceptual distinctions standardly drawn between civil disobedience and other kinds of dissent since civil disobedience may intend a revolution
 - However, Brownlee's account and other theorist stretch the concept beyond recognition by including violent actions which are decidedly non civil into the concept of civil disobedience
 - They also miss the point of disobedient actions which is to refuse to follow the standard script of civil disobedience
 - There is a matrix of resistance that resisters pursue a plurality of goals such as condemnation of norms or asserting rights → resisters need not be right in their assessment of injustices → also includes revenge for perceived wrongs
- Principled Disobedience encompasses both civil and uncivil disobedience
 - Civil disobedience is a subset and have the four standard norms associated with it: decorum, publicity, non-evasiveness and publicity
 - Decorum is Delmas' innovation: what we need to get along with people we disagree with so as to not cause outrage

In defence of uncivil disobedience: that incivility is not always 'wrong' and can be justified not just in exceptional circumstances but systematically and even in supposedly legitimate, liberal democratic states

- We can justify and even require resistance in the face of injustice even though uncivil means via the same moral duty to obey a law in legitimate states
- Basic constraints on principled lawbreaking that apply especially to uncivil disobedience
 - Basic human interests: Resisters must act with respect for other people's interests including their basic interests in life and bodily integrity; their interests in non-domination
 - Principle of least harm: generally seek the least harmful course of action feasible to achieve their legitimate goal
 - Can go for third best if the first and second best demands too much sacrifice
 - Respect for people's basic interests – does not entail a respectful tone and to exemplify self restraint
- Why uncivil disobedience is generally considered wrong
 - Violation of the moral duty to obey the law
 - However, such a duty is generally defeasible
 - Leftkowitz account of political obligation – the moral right to civil disobedience rests on citizens' basic right to political participation
 - Free-riding
 - Disobedience is a form of moral self-indulgence akin to free-riding – allows a personal exception to prevailing rules
 - The argument that one cannot gain from disobedience is problematic since the oppressed have much to gain from the restoration of justice
 - Non-communicative uncivil disobedience calls for a different kind of response to the free-riding objection since it does not necessarily seek to denounce the marginalisation of some members of the community
 - When disobedience are justified, it is because the state harms some people or unjustly fails to protect them from harm
 - Undermines law and order and destabilises society
 - Invites violence
 - Republican theorists argue that civil disobedience can instead strengthen society and its systems; Arendt argues that mass civil disobedience always occurs under unstable political circumstances and ultimately stabilises society by re-enacting the horizontal social contract and strengthening civic bonds; Dworkin argues that the contestation of the law helps strengthen its integrity
 - Uncivil disobedience can also exemplify respect for the rule of law and serve to bolster its integrity
 - Consider government whistleblowing: the unauthorised seizure and disclosure of state-classified information → expose serious wrongdoing and abuses, promotes the rule of law

- Usurp the power of the state to determine and to have exclusive authority over the boundaries around state secrets
- Flout democratic processes and erodes democratic authority
 - Rawls generally concedes this point that civil disobedience is essentially antidemocratic but can enhance justice against a flawed majoritarian decision → but must show fidelity to the law
 - But republican theorists have suggested that civil disobedience invigorate democratic institutions by combatting rigidifying tendencies of state institutions
 - Also conceived of as an exercise in political participation
 - Historically, uncivil acts of disobedience also have the same democratic effects as civil disobedience
 - Suffrage activists move from civil (speech acts) to uncivil (deeds) disobedience to demand the democratic franchise
 - Storming legislative assemblies and electoral precincts and burning with acid the golf courses frequented by MPs
- Uncivil disobedience and civic friendship
 - Rawls thinks that refusal to abide by the law dissolves the bonds between citizens
 - By acting civilly, we demonstrate our commitment to mutual reciprocity and thus defuses the tendency of disobedience to erode civic bonds and destabilises society
 - So, theorists thus carved a special niche for civil disobedience as the only form of unlawful resistance compatible with the demands of life in a liberal democracy
 - Uncivil disobedience might potentially damage civic friendship such as urban riots and anti-police rallies
 - Might be a virtue: uncivil disobedience may appropriately highlight and undermine the illusory ties of civic friendship when it is based on domination and oppression
 - There is a place for uncivil disobedience in liberal democratic societies when the following conditions apply:
 - The public is assured of the state's commitment to respecting everyone's full and equal status, a commitment typically embedded in a constitution or other basic law that guides institutional design and law making
 - Some citizens are effectively denied full and equal status
 - Injustice of this denial is not publicly recognised (injustice may not be deliberate but results from the interplay of social practices and institutional structures)

■ Civic friendship is an illusion for oppressed minorities

Hooker's analysis of the Black Lives Matter movement and the possibility of democratic repair

Summary: Hooker asks if it's fair to ask the African Americans who are suffering from racial terror to enact appropriate democratic politics, and argues that there is a conceptual trap in romantic narratives of black activism recasts peaceful acquiescence to loss as a form of democratic exemplarity

- Context: 2014 protests due to the killing of Michael Brown were met with disproportionate police repression against citizen protesters
- There is an absence of political reciprocity where Blacks are concerned – Blacks are perpetually the losers in American democracy
 - Democratic sacrifice is supposed to be equally distributed as is care and concern over the losses suffered by fellow citizens
 - Questions the integrity of American democracy but also the kinds of obligations that can be placed on African Americans
- When there is a fundamental lack of concern for Black lives, is it fair to continue asking African Americans to make further sacrifices on behalf of the polity? Is the exemplary citizenship by blacks in the face of such unequal bargains a form of unjust democratic suffering
- Democracies, according to Allen, are supposed to help people deal with sacrifice and loss and equally distribute the demands of such sacrifice over everyone
 - Allen characterises the non-violent civil rights era struggles of the African Americans as an example of exemplary citizenship and basically acts of heroism due to conforming to liberal norms of non-violence and democracy
 - However, Allen's transmutation of the blacks' peaceful acquiescence to the perpetual losses characteristic of a racial polity into acts of exemplary citizenship ironically fail to challenge the disproportionate distribution of loss and may instead perpetuate it
- Johnston argues that violence can be "democratically contributive...Citizens who have no official outlet for redress of grievances need to be self-reliant"
 - It is unfair to continue to ask the losers of democracy to continue to make sacrifices → their obligations towards society has rendered them unable to make their own claims to justice
 - We cannot demand a civic sacrifice from African Americans not expected of other citizens
- The asymmetry of sacrifice: it is possible for democratic sacrifices of members of subordinated groups to not be honoured but instead resented by the majority, because the majority's political imagination of what constitutes sacrifice or not is too narrow

- Arendt might be right about the burden of political heroism that it is unfairly placed on certain individuals → Arendt's critique centered on the fact that it was children (to attend a white school) not adults who were being asked to display political courage
- Broaden her criticism to the expectation that it is those who have been the victims of racism that should do the work of democratic repair and that they should make further sacrifices on behalf of the polity
- Basically, unfair to ask political sacrifice and heroism from those who have continually faced sacrifice
- Case study of BLM: how it has not emulated the political exemplarity of the civil rights movement but that this is okay
 - This criticism makes three undue assumptions:
 - a romantic narrative of the civil rights movement that results in a teleological account of racial progress and the assumed perfectibility of US democracy → narrow conception of the civil rights movement as a ceaseless and unstoppable movement towards egalitarianism
 - a claim about the effect of political solidarity with meeting racial terror with non-violence and peaceful acquiescence derived from a mistaken understanding of the moral psychology of the "white citizen" → non-violence does not convince the majorities to take action → too idealised a conception of the citizen who can be shamed into renouncing racial power
 - a theoretical gloss on non-violent protest as sacrifice that does not correspond with the way that participants in black protest movements frame their own actions as defiance or resistance
 - External imposition of how black protesters view themselves
 - Formulations of black politics as democratic sacrifice create a trap whereby any deviation from submission, respectability and non-violence serves to render black grievances illegitimate
- Riots as democratic repair
 - Not because they are a solution to structural problems and institutionalised injustices, but because they allow black citizens to express their pain and make their losses visible to a racial order that demands that they sacrifice both by not expressing anger and grief at said losses, and also by peacefully acquiescing to them

The thesis that violence is never justifiable

Gandhi

Why Brute Force is Impermissible

Launches an instrumentalist argument against violent disobedience

- Argues that there is a connection between the means and the end → that using force inherently corrupts the end state that they are pursuing, and that it will not be a one of peace and security or a happy people, much like the British
 - “We...have before us in England the force of everybody wanting and insisting on his rights, nobody thinking of his duty...what they have obtained is an exact result of the means they adopted”
 - “If I want to deprive you of your watch, I shall certainly have to fight you for it; if I want to buy your watch, I shall have to pay you for it; and if I want a gift, I shall have to plead for it; and according to the means I employ, the watch is stolen property, my own property, or a donation.”
- Analogy of the armed robber: hostilities increase tension while calm reason will reduce the tension and “destroy the man’s motive for stealing”
 - “Fair means alone can produce fair results...the force of love and pity is infinitely greater than the force of arms”

Plausibility of Passive Resistance

- Passive resistance is a method of securing rights by personal suffering; it is the reverse of resistance by arms
 - Refusal to do things contrary to one’s conscience → involves sacrifice of the self via ‘soul-force’ rather than ‘body force’
- Kantian line: sacrifice of the self is infinitely superior to sacrifice of others...only the person using it suffers and he does not make others suffer for his mistakes
- Against tyrannical majority rule
- Aristotelian Line: passive resistance is one of virtue – “physica-force men are strangers to the courage that is requisite in a passive resister”
 - Requires a strength of the mind
 - “One who is free from hatred requires no sword”

Haksar’s analysis on the relation between Gandhi and Rawls

Summary: Rawls’ theory is too restrictive to only include states of near justice; emphasises that Gandhian civil disobedience has the capacity to frustrate the evil policies of the state without converting or coercing the state in any evil sense

Section I: Persuasive Civil Disobedience

- **Similarities and Differences:**
 - **Rawls:** Defines civil disobedience as a public, non-violent, and conscientious act aimed at addressing substantial injustice in near-just societies. It appeals to the sense of justice within the existing framework.
 - **Gandhi:** Advocates for civil disobedience as part of Satyagraha (truth-force), emphasizing moral persuasion through self-suffering and non-violence. Gandhi applies it broadly, even against unjust regimes, believing in its transformative power.
- **Key Claims**

- Both emphasize openness, non-violence, and submission to legal penalties to preserve the moral legitimacy of the act.
- Gandhi imposes stringent moral and personal qualifications for engaging in civil disobedience, whereas Rawls focuses on structural prerequisites within near-just societies.
- **Arguments:**
 - Gandhi's approach involves a deep moral commitment and readiness to endure suffering to appeal to the oppressor's conscience.
 - Rawls sees civil disobedience as a method to correct systemic failures without destabilizing the societal order.
- **Critique and Suggestions:**
 - The author critiques Rawls's model as overly optimistic and "cosy," insufficient against deeply unjust regimes.
 - Suggests modifying Rawls's theory to incorporate higher degrees of personal sacrifice and adaptability for broader contexts.

Section II: Civil Disobedience and Non-Cooperation

- **Non-Cooperation:**
 - Gandhi argues that non-cooperation with an evil state is a moral duty, aligning with civil disobedience as a practical expression of dissent.
 - Breaking unjust laws in a non-coercive way can delegitimize oppressive policies without directly harming the authorities.
- **Key Claims:**
 - Non-cooperation extends beyond legal violations to a moral imperative to disengage from complicity in injustice.
 - Gandhi emphasizes the non-violent yet impactful nature of such resistance, framing it as a form of moral dissociation rather than coercion.
- **Arguments:**
 - Non-cooperation can frustrate state policies effectively, even in tyrannical regimes, while adhering to ethical principles.
 - The author explores how this method reconciles with Gandhi's broader philosophy of engaging in a "search for truth."

Challenges and Critique

- **Rawls's Assumptions:**
 - The limitation of civil disobedience to "clear and substantial injustices" is problematic in near-just societies, where such injustices are often systemic and less obvious.
 - The reliance on legal and political processes to address injustices overlooks structural barriers faced by minorities.
- **Gandhi's Flexibility:**

- Gandhi's model accommodates both oppressive regimes and near-just societies, leveraging moral and emotional appeals to prompt systemic change.
- **Proposed Modifications:**
 - Suggests relaxing Rawls's stringent requirements to allow for broader applications, incorporating elements of Gandhi's philosophy, like sustained engagement and moral persuasion.

Democracy and Civil Disobedience

Fung's ethics of deliberative democracy amidst injustice

- Deliberative democracy fails to offer guidance regarding the responsibilities of citizens and institutions in nonideal circumstances
 - Many claim that the norms in deliberative democracy bias deliberation and discussion in favour of more powerful agents and perpetuate inequalities
- Account of deliberative activism: reconcile activism and deliberation – to what extent should those who are so inclined also be committed to persuasion, discussion and reason giving as principal means of settling disagreements and arriving at collectively binding decisions even under circumstances that are unfavourable to fair deliberation
 - Reject the position that we lose our commitment to norms of respectful communication in unfavourable conditions that undercut the ideal conditions required since it offers no political ethics and no guidance regarding how existing circumstances might be transformed to more closely approximate a deliberative ideal
- An ethical account of deliberative democracy ought to include principles of action that respect the political sensibilities that motivate the position of losing our commitment to deliberation while contending that deliberative democracy is a demanding ideal that holds its adherents to a higher standard of political behaviour. Such principles generate an account of how conditions for deliberation might be improved in incremental, nonrevolutionary steps
- Principles to guide political actions in a wide range of suboptimal circumstances
 - Prioritise arrangements that decide political actions according to exchange of reasons and arguments broadly conceived → but undercut by inequalities and structural power imbalances because it disrupts the potential for reciprocity
 - Sometimes force is more compelling than the better argument and is thus necessary to circumvent these structural imbalances → forces people to listen
 - Deliberative activists and practitioners of civil disobedience regulate their actions according to a difficult internal calculus that weighs the ethical cost of taking action that violates norms to which they deeply adhere (legal norms for one and deliberative norms for another)

- Four principles should govern the deliberative democrats' choice for action
 - Fidelity: twin loyalties to deliberation (which requires toleration for imperfections in deliberative governance and outcomes) and to the integrity of the liberal society which he lives (prevents revolutions)
 - Charity: assume that his interlocutors are acting in good faith until they prove themselves unwilling
 - Exhaustion: refrain from using non deliberative political methods until reasonable efforts to persuade and institute fair, open and inclusive deliberations fail
 - Proportionality: choice and means of non-deliberative methods should scale according to the extent to which political adversaries and opponents reject the procedural norms of deliberation and the substantive values that ground it
- Transforming conditions to become hospitable towards deliberative democracy
 - Often a deep structural failure in deliberative democracy in non-ideal conditions → economic inequalities which are perpetuated and cultural inequalities which privilege certain norms of communication
 - Face to face interventions and communications might mitigate some inequalities which distort deliberative exchanges → limited by goodwill of more powerful parties
 - Institutional reforms: agencies to entertain and respond to comments from any member of the public and reallocates authority from some domain of public decision from non deliberative structures to deliberative ones
 - Fostering reciprocal will to deliberate by changing the unequal authority relationship that makes it possible for officials to resist deliberation